

- (d) bonds, stock and other securities (including interest thereon) created under the Acts relating to land purchase, the creation thereof and the service and redemption thereof whether created before or after the passing of this Act; and
- (e) property for the time being vested in the Land Purchase Trustee for Northern Ireland and functions in respect thereof :

2ND SCH.
—cont.

Provided that where a purchase annuity has been redeemed in whole or in part under the Acts relating to land purchase and it becomes necessary that a deed or other instrument should be executed for the purpose of releasing any land from the charge to which it was subject in respect of the annuity, the reservation of the matters referred to in paragraph (c) of this Schedule shall not be deemed to render execution by a department of the Government of the United Kingdom requisite to the validity of the deed or instrument.

CHAPTER 22.

An Act to make temporary provision for the financial adjustments necessary by reason of the second appointed day for the purposes of the Unemployment Act, 1934, having been postponed from the first day of March, nineteen hundred and thirty-five; and to authorise the borrowing by public assistance authorities of sums required for the purpose of meeting expenditure incurred by them for the year ended on the thirty-first day of March, nineteen hundred and thirty-five, in excess of their estimates for that year. [6th June 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of making the financial adjustments necessitated by the delay in relieving local

Grants to
local autho-
rities in

consequence of postponement of second appointed day. 24 & 25 Geo. 5. c. 29. authorities in respect of expenditure in connection with relief of the poor occurring by reason of the second appointed day for the purposes of the Unemployment Act, 1934 (hereinafter referred to as the principal Act) having been postponed from the first day of March nineteen hundred and thirty-five, a grant shall, in accordance with the provisions of this section, be paid to the council of every county and county borough in respect of the period beginning with that date and ending with the thirtieth day of September nineteen hundred and thirty-five, or with the day before the date hereafter appointed as the second appointed day for the purposes of the principal Act, whichever is the earlier.

(2) For the purpose of determining the annual rate of the grant payable under this section to any council, there shall be ascertained the estimated expenditure (including the cost of administration) incurred by the council in connection with the provision, in the period beginning with the first day of December nineteen hundred and thirty-four and ending with the twenty-eighth day of February nineteen hundred and thirty-five, of relief which they would not have provided if the Unemployment Assistance Board had been entitled throughout that period to take into consideration applications for allowances which they are not entitled under the principal Act to take into consideration before the second appointed day; and the annual rate of the grant payable to the council shall be the estimated annual equivalent of the amount so ascertained.

(3) The grant payable under this section to any council shall be paid out of moneys provided by Parliament in such instalments payable at such times as the Treasury may direct and, subject as hereinafter provided, shall be at the annual rate determined under the last foregoing subsection :

Provided that—

(a) from the grant payable under this subsection there shall be deducted such amount as may be determined by the Treasury to be equal to the portion of the annual contributions which would, if the second appointed day for the purpose of the principal Act had been the

first day of March, nineteen hundred and thirty-five, have been payable by the council under section forty-five of that Act in respect of the period in respect of which the grant is payable; and

- (b) in cases where the boundary of a county or county borough has (whether before or after the passing of this Act) been altered since the thirtieth day of November, nineteen hundred and thirty-four, such adjustments shall be made in the amount of the grant payable to that council as the Minister of Health may direct.

(4) In the foregoing provisions of this section the expression "estimated" means, in relation to any expenditure of, or cost to, a council, and in relation to the annual equivalent of the amount ascertained under subsection (2) of this section, estimated to the satisfaction of the Minister of Health in accordance with directions given by him.

(5) All sums paid to a council by way of grant under this section shall be applied by them towards meeting expenditure incurred under the enactments relating to the relief of the poor.

2. Subsection (2) of section forty-five of the principal Act (which makes provision as to the contributions to be paid to the Unemployment Assistance Board by the councils of counties and county boroughs in each of the years in the period beginning on the first day of April nineteen hundred and thirty-four and ending on the thirty-first day of March nineteen hundred and thirty-seven) shall have effect as if for the reference therein to the first day of April nineteen hundred and thirty-four there were substituted a reference to the first day of April nineteen hundred and thirty-five:

Amendment
of 24 & 25
Geo. 5.
c. 29. s. 45.

Provided that the deductions to be made under the last foregoing section from the grants payable thereunder shall be calculated as if this section had not been passed.

3.—(1) The council of any county or county borough may borrow by way of temporary loan or overdraft from a bank or otherwise such moneys as may be shown to the satisfaction of the Minister of Health to be required

Temporary
power of
public
assistance

authorities
to raise
loans.

for the purpose of meeting expenditure incurred by them in connection with the relief of the poor in the year ended on the thirty-first day of March nineteen hundred and thirty-five, in excess of the sums provided for in their estimate for that year :

Provided that any moneys so borrowed shall be repaid by such instalments, and within such periods, not exceeding in the aggregate five years, as the Minister of Health may direct.

(2) This section shall be deemed to have been in operation since the first day of April nineteen hundred and thirty-four.

Application
to Scotland.

4. This Act shall apply to Scotland subject to the following modifications—

(a) for any reference to the Minister of Health there shall be substituted a reference to the Secretary of State;

(b) for any reference to a county borough there shall be substituted a reference to a large burgh within the meaning of the Local Government (Scotland) Act, 1929;

(c) any references to a county shall, in the case of the counties of Perth and Kinross and of the counties of Moray and Nairn, be construed as a reference to the combined county of Perth and Kinross or the combined county of Moray and Nairn, as the case may be, and any reference to the council of a county shall be construed accordingly;

(d) section three shall not apply.

19 & 20
Geo. 5. c. 25.

Short title,
citation and
extent.

5.—(1) This Act may be cited as the Unemployment Assistance (Temporary Provisions) (No. 2) Act, 1935, and shall be included among the Acts which may be cited together as the Unemployment Assistance Acts, 1934 and 1935.

(2) This Act shall not extend to Northern Ireland.

